

IN THE HIGH COURT OF THE UNITED REPUBLIC OF TANZANIA

DAR ES SALAAM SUB-REGISTRY

AT DAR ES SALAAM

CRIMINAL APPEAL NO 1369 OF 2026

Ref. 202601212000001369

(Appeal from the Decision of the District Court of Kigamboni, at Kigamboni in
criminal case no. 34524 OF 2024)

BAKARI SAID PELEAPPELLANT

VERSUS

THE REPUBLICRESPONDENT

JUDGEMENT

29th June & 31st Aug, 2026.

KIREKIANO, J:

The appellant, together with two other persons who are not parties to this appeal, was jointly charged with the offence of armed robbery contrary to section 287A of the Penal Code, Cap. 16 R.E. 2022. It was alleged that on 18th November, 2024, at Mikadi area within Kigamboni District in Dar es Salaam Region, they stole one Samsung A12 mobile phone valued at Tshs. 450,000/=, a wallet containing Tshs. 264,000/= in cash, a voter's card, driving licence and school identity card, all the property of Reuben Godfrey Mbwambo, and immediately before and after

such stealing, assaulted him with a moth (nondo) on the left side above his eye in order to obtain or retain the stolen property.

The appellant and his co-accused denied the charge and the case proceeded to full trial. The prosecution called ten witnesses and tendered six exhibits.

Briefly, the record shows that on the night of 18th November, 2024, the complainant, Reuben Godfrey Mbwambo (PW1), was attacked at Mikadi, Kigamboni, by a group of persons who robbed him of his mobile phone, cash and identity documents. PW1 testified that he was able to recognise the appellant, whom he knew before the incident, as one of the persons involved in the robbery. He further testified that the appellant was armed with an iron bar and used it to strike him above the left eye during the robbery.

The prosecution further alleged that shortly after the incident, the appellant was found at the shop of Amrani Pastory (PW6) attempting to sell the stolen mobile phone. According to PW6, the appellant brought the phone to his shop for sale. The phone was subsequently seized and tendered in evidence as Exhibit P1, while a certificate of seizure was tendered as Exhibit P2.

The prosecution also relied on the evidence of J5178 DC Angelus (PW2), who arrested the appellant and seized Exhibit P1 from the appellant; the same was kept by A.2969 SSGT Omary (PW9), the exhibit keeper, who testified regarding the receipt, inspection and labelling of the recovered exhibits. Ashrafu Yahaya (PW3), who testified on recovery of the identity card, Exhibit P6; and ASP Danford Mahundu (PW4), who conducted the identification parade involving the appellant and other accused persons. G3907 DSGT Mgaya (PW5), the investigating officer, testified on the investigation of the case and tendered the appellant's cautioned statement as Exhibit P4.

Neema Daudi Daniel (PW8), a medical doctor at Kigamboni Hospital, who examined PW1, also testified and tendered PF3 as Exhibit P5, which documented the injuries sustained by PW1. Alhaji Alizoni Msuya (PW10) also testified regarding the identification parade involving the 2nd and 3rd accused persons.

On the defence case, Bakari Said Pele (DW1) testified that on the night of 18th November, 2024, he was at sea engaged in fishing activities and was therefore not at the scene of the crime. On 19th November, 2024, at about 3:00 p.m., he went to Kijiweni at Mlonge, Mikadi, where he met some people in a nearby shop; one person who had been at the shop

then ran away, after which Kelvin (PW7) and others raised an alarm of "thief".

Upon going close to the shop, he was informed that the person who had run away had brought a mobile phone for sale. PW7 then asked those present to accompany them to the police station as witnesses. DW1 stated that upon reaching the police station, they were detained and beaten, and that he remained in custody for several weeks. He denied committing the offence or being found in possession of the stolen phone, maintaining that the phone was in the custody of Amran, PW6, who had been selling it.

He also maintained that he did not know the 2nd and 3rd accused persons before they were brought together at the police station. The appellant's mother, Nuru Juma Pele (DW4), testified principally on the circumstances surrounding his arrest and detention. She alleged that the appellant had been assaulted while in police custody and that her efforts to secure his release were unsuccessful.

The 2nd and 3rd accused persons also denied involvement in the offence and maintained that they did not know each other or the appellant prior to their arrest.

At the conclusion of the defence case, the learned trial magistrate considered the evidence on record and found that the prosecution had

proved its case against the appellant beyond reasonable doubt, but not against the 2nd and 3rd accused persons.

The appellant was accordingly convicted of armed robbery and sentenced to thirty (30) years' imprisonment. Aggrieved by the said decision, the appellant preferred the present appeal on six grounds. Initially, the appeal was founded on five grounds, but subsequently, upon leave of this Court, the appellant filed an additional ground. The grounds of appeal, as they now stand, are as follows:

- 1. That the learned trial magistrate erred in law and fact in convicting the appellant on a charge sheet which was incurably defective contrary to section 135 of the Criminal Procedure Act, the alleged weapon having been described as a "moth", which is not a dangerous or offensive weapon or instrument within the meaning of section 287A of the Penal Code.*
- 2. That the learned trial magistrate grossly erred in law and fact by convicting the appellant based on Exhibit P1, the telephone, whose chain of custody was completely broken.*
- 3. That the learned trial magistrate grossly erred in law and fact by convicting the appellant based on Exhibits P1 and P2, the phone and certificate of seizure, respectively, whose authenticity was in question.*
- 4. That the learned trial magistrate grossly erred in law and fact by convicting the appellant based on insufficient and unreliable visual identification evidence.*
- 5. That the learned trial magistrate grossly erred in law and fact by convicting the appellant based on incredible, contradictory and insufficient evidence of prosecution witnesses.*

6. *That the learned trial magistrate grossly erred in law and fact by convicting the appellant on a case which was not proved beyond reasonable doubt.*

The appeal was argued by written submissions. Mr Hamis Mbangwa, learned advocate for the Appellant, filed his submissions, while the respondent opposed the appeal through Mr Sayi Gugah, learned State Attorney.

As this is a first appeal, this Court is under a duty to subject the entire evidence on record to a fresh and exhaustive re-evaluation and to make its own findings. The duty of a first appellate court was stated in **Mapambano Michael @ Mayanga v Republic**, Criminal Appeal No. 268 of 2015 [2016] TZCA 65 (25 April 2016), where the Court of Appeal held:

"The duty of first appellate court is to subject the entire evidence on record to a fresh re-evaluation in order to arrive at decision which may coincide with the trial court's decision or may be different altogether."

See also **Alex Peter Mgoba v Republic**, Criminal Appeal No. 459 of 2023 [2026] TZCA 148 (27 February 2026).

In undertaking that duty, I shall begin with the first ground of appeal, which challenges the validity of the charge sheet. This is because the charge is the foundation of a criminal trial, and its validity must first be ascertained. Having determined that ground, we shall consider the sixth

ground, which challenges the sufficiency of the prosecution evidence. In doing so, I shall, where necessary, address the complaints raised in the remaining grounds concerning Exhibit P1, identification, and the credibility and consistency of the prosecution evidence.

On the first ground of appeal, the appellant submitted that the charge sheet was incurably defective contrary to section 135 of the Criminal Procedure Act, Cap. 20 R.E. 2023 (the CPA). It was argued that the weapon alleged to have been used in the robbery was described as a “moth”, which is not a dangerous or offensive weapon or instrument contemplated under section 287A of the Penal Code. The appellant further contended that the trial court improperly interpreted “moth” to mean an iron bar, thereby effectively rewriting the charge.

It was also submitted that the alleged iron bar was never produced in evidence.

In response, Mr Gugah submitted that the particulars clearly stated that the appellant did hit the complainant with a “moth (nondo)” and that the inclusion of the Kiswahili word “nondo” removed any ambiguity. He further submitted that, even if there was any irregularity, it was curable under section 411 of the CPA, as the appellant was sufficiently informed

of the nature and seriousness of the charge and was able to defend himself.

I have considered the contending submissions. Section 135 of the CPA requires a charge to contain a statement of the specific offence and particulars sufficient to give the accused reasonable information as to the nature of the charge. In the present case, the charge expressly stated that the appellant was charged with armed robbery contrary to section 287A of the Penal Code. The particulars alleged that he stole the complainant's properties and, immediately before or after such stealing, beat him with a "moth (nondo)" on the left side above the eye in order to obtain and retain the stolen properties.

I agree that the English word "moth", standing alone, would not describe a weapon or instrument contemplated under section 287A. However, the word was accompanied by the word "nondo" and was further particularised by the allegation that it was used to beat the complainant above the eye. The prosecution evidence, particularly that of PW1, described the instrument as an **iron bar**. In my view, the trial magistrate's reference to an **iron bar** was therefore based on the evidence on record and did not amount to rewriting the charge.

I also find no basis for holding that the appellant was misled or prejudiced in his defence by the description of the weapon. He fully contested the allegation that he participated in the robbery and challenged the evidence concerning the alleged weapon. The fact that the weapon itself was not produced as an exhibit concerns proof of the ingredients of the offence rather than the validity of the charge.

In the circumstances, I find that the charge sufficiently disclosed the offence and gave the appellant reasonable notice of the case he was required to meet. Ground number one therefore fails.

Having found the charge to be valid, I now turn to the sixth ground, namely whether the prosecution proved its case against the appellant beyond reasonable doubt. In determining this ground, I shall consider the complaints raised in the remaining grounds insofar as they bear upon the sufficiency and reliability of the prosecution evidence.

The appellant particularly challenged the reliance placed on Exhibit P1, contending that its chain of custody was not established and that the evidence concerning its recovery was contradictory. He pointed out that PW9 testified that he received the phone from PW2 on 18th November, 2024 and, on 14th January, 2025, handed it over to WP 9755 D/CPL Immaculata, whereas PW5, G3907 DSGT Mgaya, was the officer shown

by the record to have been assigned to investigate the case. It was therefore argued that the prosecution failed to account for the phone's subsequent movement to PW1, who tendered it in court as Exhibit P1.

The appellant also contended that the evidence concerning recovery of the phone was contradictory. He contrasted PW2's evidence that he searched the appellant and found the phone in his possession with PW7's evidence that the police searched the shop. Reliance was placed on **Michael Haish v Republic** (1992) TLR 92.

In reply, Mr Gugah submitted that the chain of custody was sufficiently established through PW2 and PW9. He argued that the handover to WP 9755 D/CPL Immaculata did not break the chain, since she was also involved in the investigation, and that the chain of custody could be established through oral evidence. He further submitted that there was no contradiction between PW2 and PW7, as the former referred to the search of the appellant while the latter referred to the search of the shop. The respondent therefore urged the Court to dismiss the grounds.

I have considered the rival submissions and examined the record. The law on chain of custody is settled. It concerns the chronological trail of seizure, custody, transfer, and disposition of an exhibit, to establish that the item produced in court is the same item connected with the alleged

offence and has not been substituted or interfered with. See **Kadumu Gurube v Republic**, Criminal Appeal No. 183 of 2015 [2017] TZCA 1033; and **Maria Osward Mtumbuka & Another v Republic**, Criminal Appeal No. 448 of 2024 [2026] TZCA 398.

However, a gap in the chain does not invariably render an exhibit inadmissible or fatal to the prosecution case. Its effect depends on the nature of the exhibit and the circumstances of the particular case. In **Joseph Leonard Manyota vs Republic** (Criminal Appeal No. 485 of 2015) [2017] TZCA 1029 (14 August 2017), cited with approval in **Ramadhani Hashim Swedi @ Bryton v Republic**, Criminal Appeal No. 165 of 2021 [2024] TZCA 755, the Court of Appeal held:

"It is important to point out however, that notwithstanding what we have just stated, it is not every time that when the chain of custody is broken, then the relevant item cannot be produced and accepted by the court as evidence, regardless of its nature. We are certain that this cannot be the cases say, where the potential evidence is not in the danger of being destroyed, or polluted, and/or in any way tempered with. Where the circumstances may reasonably show the absence, of such dangers, the court can safely receive such evidence despite the fact that the chain of custody may have been broken. Of course, this will depend on the prevailing circumstances in every particular case."

In the present case, PW2 testified that he searched the appellant and found him in possession of a Samsung A12 phone. PW9 confirmed receiving a Samsung A12 phone from PW2 on 18th November, 2024.

The difficulty arises from PW9's evidence that, on 14th January, 2025, he handed the exhibit to WP 9755 D/CPL Immaculata, whose role in handling the exhibit and its subsequent movement to PW1 was not explained. Nevertheless, Exhibit P1 is an ordinary mobile phone, not ordinarily susceptible to destruction, contamination or alteration in the manner contemplated in **Joseph Leonard Manyota** (supra). Further, PW1 gave specific identifying features of the stolen phone, including its colour, four cameras, damaged protector, SIM card number and serial number, which the trial magistrate found on Exhibit P1.

In the circumstances, I am not satisfied that the unexplained gap in itself created a reasonable possibility that the exhibit was substituted or interfered with. The chain of custody complaint therefore does not, standing alone, render Exhibit P1 unreliable.

The more significant question, however, is whether the evidence sufficiently established that Exhibit P1 was recovered from the appellant in the first place. PW2 testified:

"I went to the scene of the crime and introduced myself to the suspects, and then I searched him on his body and found him in possession of the phone, make Samsung A 12."

PW6 substantially supported this account, stating:

"After the police men came and introduced them selves and asked about a suspect then one police man go near to Bakari then inspect him. They got him with a stolen phone make Samsung A12."

PW7, however, gave a different account. He stated:

*"I took the phone on my hand and I looked at it and then Beka and his fellow who sat beside me. I looked at Beka and told him that this phone belongs to my friend who was attacked last night. Beka said that he was a broker who was assigned to sell the stolen phone. before going to the police station, **the police officer searched the shop and he wrote a paper relating to the stolen phone which was in my hand.**"*

In my view, these accounts create a material contradiction concerning the circumstances in which the phone was recovered and seized. PW2 and PW6 place the recovery of the phone on the appellant, whereas PW7's account places the phone in his own hands and refers to a search of the shop. It is the rule as stated in **Mohamed Said Matula V Republic; 1995 TLR 3 CAT** thus:-

"Where the testimonies by witnesses contain inconsistencies and contradictions, the Court has a duty to address the inconsistencies and try to resolve them where possible, else the Court has to decide

whether the inconsistencies and contradictions are only minor, or whether they go to the root of the matter

In my assessment, the prosecution case is premised on the nexus between the appellant and the seizure of the phone. This contradiction above concerns a material aspect of the prosecution case, namely whether the stolen phone was actually recovered from the appellant. That was not a marginal matter; it was an important link connecting the appellant with the stolen property. It cannot safely be ruled insignificant as a minor inconsistency. In this it would have been different if the shop belonged to the appellant.

The appellant further contended that the prosecution evidence was at variance with the particulars of the charge regarding the stolen properties and their respective values. It was submitted that, whereas the charge alleged that the Samsung A12 mobile phone was valued at Tshs. 450,000/= and that Tshs. 264,000/= was stolen, PW1 testified that the phone was valued at Tshs. 150,000/= and that Tshs. 266,000/= was stolen.

It was also pointed out that PW1 did not mention the wallet referred to in the particulars of the charge. Mr. Gugah did not specifically address this complaint.

The law governing variance between a charge and the evidence is settled. The Court of Appeal in **Erasto John Mahewa v Republic** [2023] TZCA 17678 (29 September 2023), when came across a situation akin to this one where there was variance between the charge sheet and the evidence on record on the items said to be stolen, the Court said:

*"It is trite law that, the allegations contained in the charge must be supported by the prosecution account so as to prove the charge beyond reasonable doubt. In the premises, **the prosecution evidence varied with the charge on what was actually stolen from PW2 in terms of quantity, nature and other items were not mentioned in the charge.** Under the circumstances, it was incumbent on the prosecution to seek leave of the trial court to amend charge pursuant to section 234(1) of the CPA. ... Failure to seek leave to amend the charge was fatal and prejudicial to the appellant leading to serious consequences rendering the charge not proved beyond reasonable doubt."*(Emphasis added)

Further, the Court of appeal in **Mrisho Rashid Adam v Republic**, Criminal Appeal No. 155 of 2024 [2026] TZCA 369 (27 March 2026), the Court rejected the view that discrepancies concerning stolen properties were merely trivial. The Court emphasized that since the charge is the foundation of a criminal case, the prosecution must marshal evidence supporting the particulars contained in the charge. It was stated:

"In the same scenario there is variance of the items alleged to be stolen and their value. PW1 mentioned additional items, namely an Itel mobile phone and a wallet containing TZS. 30,000.00, which were

not reflected in the charge sheet. There was also some discrepancy regarding the value of the Tecno mobile phone. Those variances cannot be regarded as trivial, as they touch the foundation of the prosecution's case and thus raise serious reasonable doubt as to the reliability and consistency of prosecution witnesses."

The charge alleged that the Samsung A12 mobile phone was valued at Tshs. 450,000/= and that Tshs. 264,000/= in cash was stolen from the complainant, together with a wallet, voter ID, driving licence and school ID. However, PW1 testified that the phone was valued at Tshs. 150,000/= and that Tshs. 266,000/= was stolen. He also did not mention the wallet in his evidence.

These discrepancies concern the very property alleged to have been stolen; its value and the amount of cash allegedly taken cannot be regarded as mere minor discrepancies. The prosecution did not seek to amend the charge under section 234(1) of the CPA to bring its particulars into conformity with the evidence. Consequently, the variance remained uncured and raises reasonable doubt as to whether the offence as charged was proved beyond reasonable doubt.

Having found a material contradiction in the prosecution evidence regarding the circumstances in which Exhibit P1 was recovered, and further that the prosecution evidence materially varied from the particulars of the charge regarding the property stolen and its value, I find

that the prosecution case was not proved beyond reasonable doubt. These findings are sufficient to dispose of the appeal.

Accordingly, the sixth ground of appeal succeeds to that extent. The appeal is allowed, the conviction is quashed and the sentence of thirty years' imprisonment is set aside. The appellant shall be released forthwith unless otherwise lawfully held.

Dated at Dar es Salaam this 31st August 2026.



A J KIREKIANO

JUDGE

COURT:

Judgment delivered in the presence of the appellant and his advocate, Mr Hamis Mbangwa and in the presence of Miss Sofa Bimbiga, learned Senior State Attorney for the respondent



A J KIREKIANO

JUDGE

31.8.2026